

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

PELTON INTERACTIVE, INC., *Complainant*

v.

FLEXPORT INTERNATIONAL LLC, *Respondent*.

DOCKET NO. 24-19

Served: December 18, 2024

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

MEMORANDUM ORDER ON SCHEDULING

On December 18, 2024, the undersigned held a video status conference to discuss Complainant's December 13, 2024 motion to extend the discovery schedule production of documents from December 16, 2024, to December 23, 2024. As Respondent rightly pointed out in its December 16, 2024 response to the motion, the motion was not timely filed to allow meaningful conferral or sufficient time for Respondent to respond to the motion. However, in the interest of moving forward with the exchange of evidence, Complainant was ordered to produce all documents it had available by the original deadline of December 16, 2024, and then continue rolling production until Respondent could respond and the arguments of both parties be assessed. Order on Motion to Extend Document Production Deadline at 1. At the status conference, Complainant stated that it had provided 36,000 pages of documents on December 16, 2024, the deadline in the Scheduling Order, and it was preparing to provide another 20,000 pages on Friday, December 20, 2024. Respondent stated that it worked diligently to produce documents on December 13, 2024, pursuant to Complainant's request. Complainant added that it did not access Respondent's documents until December 17, 2024, to alleviate any concerns that it had access to documents before Respondent had access to Complainant's production.

Based on the statements of the parties at the status conference, and because the need for as complete a record as possible outweighs any potential prejudice, the Complainant is **ORDERED** to provide a second batch of records by December 20, 2024, and is **FURTHER ORDERED** to provide any remaining documents to Respondent no later than 5 p.m. on December 23, 2024.

As discussed at the status conference, any future motions to extend time that are not jointly made must be filed sufficiently ahead of the deadline to allow the opposing party seven days to respond to the motion pursuant to Commission Rule 71(b).

Linda S Harris Crovella

Linda S. Harris Crovella
Administrative Law Judge